SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN

DATE: 06/26/26 TIME: 1:30 P.M. DEPT: L CASE NO: CIV2300292

PRESIDING: HON. MARK A. TALAMANTES

REPORTER: CLERK: M. GIL

PLAINTIFF: SARAH MALAGA vs. DEFENDANT: COMMUNITY BANKERS SERVICES CORPORATION, ET AL	

NATURE OF PROCEEDINGS: MOTION – OTHER: PRELIMINARY APPROVAL OF SETTLEMENT

RULING

On May 21, 2026, Plaintiff Sarah Malaga filed a motion seeking preliminarily approval of a representative wage and hour case under California's Private Attorney General Act ("PAGA"), Labor Code § 2698, et seq.

Plaintiff asks that the Court to preliminarily approve this representative PAGA settlement, in which Defendants Community Banker Services Corporation and WestAmerica Bancorporation (together, "Defendants") have agreed to pay $167,500.00. After deducting administration costs and requested attorneys' fees and costs, approximately $88,592.02 will be available for distribution to Aggrieved Employees and the LWDA. The employee payout portion of the settlement provides for twenty-five percent (25%) of this amount will be allocated to Aggrieved Employees and the remaining seventy-five percent (75%) to the Labor Workforce and Development Agency ("LWDA").

Defendant stipulates to the settlement and did not file an opposition.

The terms are:

1. Defendant will pay a maximum of $167,500.00, of which, $88,592 will be distributed on *pro rata* basis according to the total worked by each aggrieved employee after the payment to the LWDA during the claims period. There are approximately 224 employees who will benefit from the settlement. The LWDA will receive $66,440 of the settlement, with the remaining $22,148 flowing to the employees.

2. The settlement period is from November 30, 2021, to July 1, 2022.

3. The Administrator will disburse the entire settlement amount based on a distribution process negotiated by the parties.

4. The Settlement will release specified wage-and-hour specified claims for PAGA Penalties for all Aggrieved Employees.

5. The release is narrowed to include all claims for civil penalties under the PAGA during the PAGA period.

6. Funds available after claims administration is proposed to be directed to the State of California's Unclaimed Property Fund (or other recipient as directed by the Court).

7. Cost of settlement administration shall be up to $4,250 of the settlement fund;

8. Enhancement/Service Awards to Plaintiff: Defendant will not oppose the application for Representative Enhancement of up to $2,500 for each Plaintiff, to be paid from the settlement fund;

9. Fees and Costs: Defendant will not oppose Counsel's application for fees of up to one third (1/3) of the Gross Settlement Amount (currently estimated to be $55,833.33). Counsel's stated lodestar is 116,155.00. The requested cost recovery of $18,000 is also preliminarily approved.

Counsel to appear to explain why the State is slotted to receive a larger recovery than the aggrieved workers.

The parties shall meet and confer to determine a more appropriate recipient of residue funds other than the state common fund. As stated in the unopposed motion for approval, the public policy purpose of PAGA is to enhance the state's ability to enforce labor laws by deputizing private citizens to act as law enforcement proxies). "[A] trial court should evaluate a PAGA settlement to determine whether it is fair, reasonable, and adequate in view of PAGA's purposes to remediate present labor law violations, deter future ones, and to maximize enforcement of state labor laws." (*See Moniz v. Adecco USA, Inc.*, 72 Cal. App. 5th 56, 77 (2021) (emphasis added); see also Kang v. Wells Fargo Bank, N.A., 2021 WL 5826230, at *15 (N.D. Cal., 2021) (evaluating a PAGA settlement under the standard of whether the settlement terms "are fundamentally fair, reasonable, and adequate in view of PAGA's public policy goals")).

Here, the settlement vindicates the rights of Aggrieved Employees who are alleged to have experienced possible wage and hour violations under the PAGA. The parties are ordered to meet and confer to discuss an award of the residual settlement to a non-profit organization or collegiate educational program with a mission statement more closely aligned to the policy objective of PAGA.

The settlement expressly provides for its enforcement pursuant to Cal. Civil Code of Procedure §664.6, with a prevailing party fee provision.

Appearances are required to discuss the fund residue. The notice documents shall be updated because this issue is unresolved.

Plaintiff to submit the final preliminary order for entry.

Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have

been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department L. For routine appearances, the parties may access Department L for video conference via a link on the court website. Kindly turn your camera on when your case is called and make sure the party or lawyer making the appearance is properly identified on the screen.

FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing while using the virtual remote courtroom. If the connection is inadequate, the Court may proceed with the hearing in the party's absence. If it is determined that you are diving your car during the hearing, you will be removed from the virtual courtroom. (Yes, this happens).

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN

DATE: 06/26/26 TIME: 1:30 P.M. DEPT: L CASE NO: CIV2301537

PRESIDING: HON. MARK A. TALAMANTES

REPORTER: CLERK: M. GIL

PLAINTIFF: PHAEDRANA NOOHRA

vs.

DEFENDANT: TAMARA WILLAT

NATURE OF PROCEEDINGS: 1) MOTION – PROTECTIVE ORDER -DISCOVERY FACILITATOR PROGRAM
2) MOTION – SANCTIONS – DISCOVERY FACILITATOR PROGRAM

RULING

Plaintiff PHAEDRANA NOOHRA filed a motion for protective order on March 30, 2026, pursuant to Cal. Code of Civil Procedure §§ 2025.420, 2030.090, 2031.060 and California Constitution Article I, Section 1. 6. The motion seeks to limit and condition certain discovery requests served by Defendant TAMARA WILLAT that plaintiff believes requests sensitive personal identifying information, third-party data, and confidential materials, the disclosure of which presents disproportionate risk and exceeds the proper scope of discovery.

Defendant responds to the motion arguing the motion is go-around from the Court's order of March 5, 2026, in which the court granted Defendant's motion to compel discovery, ordering Plaintiff to provide code-compliant responses no later than March 30, 2026. Defendant argues that the Plaintiff seeks a protective order directed at the same discovery covered by the March 5 Order, and incorporates the same privilege log dates February 14, 2026, which was addressed by the prior motion ruled in favor of the Defendant.

Furthermore, the Defendant argues that Plaintiff has yet to respond to discovery as ordered on March 5, 2026. Here, prior to the order, Plaintiff's responses were due on October 23, 2025. The court issued an order that plaintiff respond to the outstanding discovery without objection. Filing a motion to work around the order defeats the purpose of , they have been waived" (Exh. B at 5:6 8), and the Court granted precisely that relief because discovery must be free flowing to both parties, without frivolous objections and other motion practice hurdles.

California discovery rules are to be liberally construed in favor of disclosure. Discovery statutes must be interpreted broadly to facilitate the exchange of information between parties. "[A]bsent a showing that substantial interests will be impaired by allowing discovery, liberal policies of discovery rules will generally counsel against overturning a trial court's decision granting discovery and militate in favor of overturning a decision to deny discovery" (*Flagship Theatres*